

25STCP03507 25STCP03507

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-02

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Case Number: 25STCP03507 Hearing Date: September 2, 2026 Dept: 833

County of Los Angeles, Probation

Department Case No. 25STCP03507

Hearing:

September 2, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Los

Angeles County Civil Service Judge:

Joseph Lipner

Commission

and

Real-Party-in-Interest

Mark Young

Order Granting Petition for Writ of

Mandate, In Part

INTRODUCTION

Petitioner County of Los Angeles, Probation

Department ("Petitioner") moves for a writ of mandate directing the Court to overturn the Los Angeles Civil Service Commission's ("Commission") decision to set aside a 30-day suspension given to Real Party in Interest, Deputy Probation Officer II Mark Young ("Young").

The Court does not issue a tentative. The Court asks the parties to address the timeline of the incident involving Cristian G based on the record and the following comments.

The Notice of Suspension appears to make clear that Cristian G. broke into the hand sanitizer and began drinking it after Young went off duty at 2:00 pm. The Notice of Suspension described the conduct at issue as follows.

One of the minors who was housed in Maple Cottage was named Cristian G. (AR 137.) Video footage depicted Cristian in possession of a one to two (1-2) liter bottle. (AR 137.) At approximately 2:05 pm, when Young was away from Maple Cottage, Cristian G and another minor broke into the hand sanitizer dispenser located by the couches and television by the entrance to Maple Cottage. (AR 137.) Cristian G took the plastic bag from inside the dispenser and walked back to the couches by the video games televisions. (AR 137.) Also while Young was away from Maple Cottage, Cristian G. drank from the bottle, once at 2:16 p.m., twice at 3:05 pm, and twice at 3:13 pm. (AR 137.)

The Notice of Suspension also states that, on the video, at 1:25pm Cristian G is depicted in possession of a bottle, which he placed on the floor. He drank from the bottle at 1:56pm. (AR 140.) This was during Young's Backup Staff assignment at Maple Cottage. The Court interprets this statement as making the point that while Cristian G had not yet broken into the soap dispenser while Young, Young could have seen the suspicious circumstance that Cristian G possessed a large bottle and intervened before the incident occurred.

Eventually, from drinking the soap mixture, Cristian G became unresponsive and unconscious and medical staff had to be called. (AR 139.)

The

Notice of Suspension concludes:

It is concerning that throughout your entire shift from 1:00 p.m. to 2:00 p.m. and 3:30 p.m. to 4:35 p.m. (approximate time of the emergency with Minor Cristian G) and with the exception of you and DPO Michael Dugan's brief interaction with the youth in Maple H Cottage, no officer, including you, positioned themselves in the dayroom to supervise the minors. . . [Y]ou are required to actively supervise minors so as to detect their self-endangered conduct or conduct that endangers others. The latter is especially true because you knew that hand sanitizer had been installed in Maple H Cottage and that minors could misuse it, including to ingest it.

(AR 143). Also:

If you had engaged in active supervision of the minors during your shift, there is a greater likelihood that you would have detected the unusual conduct by Minor Cristian G and [the other minor]. There is a greater likelihood that you would have detected the unusually large plastic bottle that they were drinking from and would have prevented the oncoming damage. However, you failed to do so.

(AR 144.)

The investigative report, by contrast, calls the large plastic bottle that was seen at 1:25 pm "a hand sanitizer bottle." (AR 165.) This seems to conflict with the Notice of Suspension stating that Cristian G broke into the hand sanitizer dispenser at 2:05 pm. (AR 137.)

The Petitioner's brief appears to be based on the notion that Young was on duty (i.e., between 1:00pm to 2:00pm) "when the minor was actively drinking the toxic mixture from the plastic battle." (Petitioner's Opening Brief at 9:21-23.) Petitioner also refers to the "1:36 breach of the dispenser." (Petitioner's Reply Brief at 4:23.) Young in his opposition does not appear to take issue with Petitioner's timeline of when the toxic mixture was obtained and ingested. However, in conflict with all of this, the Notice of Suspension makes explicitly clear that Cristian G did not have the toxic mixture until after Young was off duty at 2 pm. (AR 137.)

The parties should clarify the timeline based on the record and be prepared to cite to the record.